

26STC04819 26STC04819

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-07

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Case Number: 26STC04819 Hearing Date: August 7, 2026 Dept: 732

UMG Recordings, Inc. v. Mark Opitz

Friday, August 7, 2024

CASE NUMBER: 26STC04819

UNOPPOSED

Plaintiff UMG Recordings, Inc.'s Motion for Pro Hac Vice Admission of Richard Mandel

Facts: On March 20, 1989, Plaintiff UMG Recordings, Inc. (UMG) predecessor in interest MCA Records, Inc., allegedly entered into a contract with third party Jost Productions, Inc. (Jost) for provision of recording services to band/artist Red Alert, later known as Steelheart. The agreement required Jost to produce a record(s) on behalf of Steelheart. All responsibilities for recording, including payment for the hiring of any and all required personnel were the responsibility of Jost.

Jost hired Defendant Mark Opitz as a producer. Opitz made a claim for producer royalty payments to which UMG denies any obligation pursuant to the terms of the Jost Productions agreement.

The second cause of action involves Opitz's work as a producer with the band INXS. Plaintiff maintains Opitz submitted an improper demand for royalty payment to which Plaintiff maintains no responsibility under a licensing agreement for the use of certain master recordings.

Procedural History:

On February 13, 2026, Plaintiff filed a 2 cause of action complaint:

1. Declaratory Relief (Steelheart)

2. Declaratory Relief (INXS)

On March 5, 2026, Plaintiff filed an executed Notice of Acknowledgment and Receipt from Defendant.

On July 24, 2026, Defendant, in pro per, from Australia, filed a cross-complaint for

(1) Accounting

(2) Breach Of Contract As Intended Third-Party Beneficiary

(3) Breach Of Implied-In-Fact Contract

(4) Restitution / Quasi-Contract

(5) Declaratory Relief

(6) Account Stated

On July 20, 2026, Plaintiff, in pro per and from Australia, filed an answer.

Analysis

PRO HAC VICE

Pro hac vice admission in California is governed by California Rules of Court, Rule 9.40. To be admitted pro hac vice, one must be “a member in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States.” (California Rules of Court, rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or “regularly engaged in substantial business, professional, or other activities in the State of California.”

An attorney seeking pro hac vice admission must file a verified application in both court and the State Bar of California establishing:

(1) [t]he applicant's residence and office address; (2)[t]he courts to which the applicant has been admitted to practice and the dates of admission; (3)[t]hat the applicant is a member in good standing in those courts; (4)[t]hat the applicant is not currently suspended or disbarred in any court; (5)[t]he title of court and cause in which the applicant has filed an application to appear as counsel, pro hac vice, in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6)[t]he name, address, and telephone number of the active member of the State Bar of California who is attorney of record. (California Rules of Court, rule 9.40(d).)

The application of Richard Mandel complies with California Rules of Court, Rule 9.40. Mandel was granted pro hac vice appearance privileges in one other case in the Central District of California. [Declaration of Richard Mandel.] The application

includes proof of payment to the California State Bar. [Declaration of Talya Goldfinger.]

Accordingly, the motion is GRANTED.

Dated: August 7, 2026

Hon. Richard Kemalyan

Judge of the Superior Court